

22STCV09825 22STCV09825

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-09-03

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Case Number: 22STCV09825 Hearing Date: September 3, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV09825

ARMANDO

VALDES PENALOZA, et al. vs OLIVIA CASTANEDA, et al.

September

3, 2026

8:30

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NATURE OF PROCEEDINGS:

MOTION OF LAW OFFICE OF

DANIEL F. JIMENEZ TO BE RELIEVED AS COUNSEL-CIVIL.

RULING:

The
Court conditionally grants both Motions.

On or before September 21, 2026, moving counsel shall
lodge updated proposed orders as to changed hearing dates, and a Proof of
Service showing service on Defendants and the Clerk of Court.

Upon
receipt of the above, the Court intends to complete, sign and file the Form
Order.

The
Court schedules a Non-Appearance Case Review on September 23, 2026.

Law
Office of Daniel F. Jimenez to give notice.

ANALYSIS:

By two Motions, filed July 20, 2026, counsel moves
to be relieved as attorney of record for each Plaintiff, by declaring, in each
form Declaration, at paragraph 2: "After several attempts to communicate with
Plaintiff, Armando Valdez Penaloza, there has been a breakdown of communication
with the client and breakdown of the attorney client relationship. Counsel has
been unable to contact Plaintiff."

Here, the form notices, declarations, and proposed
orders, sufficiently comply with the requirements for a motion to be relieved
as counsel, except for the rescheduled hearings. (See Cal. Rules of Court, rule 3.1362.)

Further, moving counsel's declarations show a cognizable
ground for withdrawal:

The client by conduct
renders it unreasonably difficult for the member to carry out the
employment effectively (e.g., noncooperation or
noncommunication). (Rules Prof. Conduct, rule 1.16(b)(4). Cf. Estate of Falco v. Decker
(1987) 188 Cal.App.3d 1004, 1020 ["We find no abuse of discretion in the trial court's implicit
finding rejecting the contention that respondents' lack of cooperation

justified appellants' withdrawal."].)

Additionally, no opposing document is filed in order to show any prejudice caused by attorney withdrawal. (See Rules Prof. Conduct, rule 1.16(d); Vann v. Shilleh (1975) 54 Cal.App.3d 192, 197.)

However, the Motions are not accompanied by any Proofs of Service.

On August 17, 2026, the Clerk only served notice of the new hearing dates on Defendants.

Further, there is no Proof of Service on the Clerk filed. If the client's address remains unknown, then Code of Civil Procedure section 1011, subdivision (b) requirements can be satisfied by serving the Court Clerk. (CRC Rules 3.1362(d) and 3.252(a).)

Therefore, the Court tentatively grants both Motions, on the conditions that moving counsel serves proposed Form Orders stating updated hearing dates, and a proof of service of the documents upon Defendants and the Clerk of Court.